

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

PATRICIA CHARLES, as guardian of minor child
L.W.,

Plaintiff,

-against-

THE CITY OF NEW YORK,
MELISSA L. STINES,
JONATHAN GOMEZ, and
JOHN DOES #1-5,

Defendants.

Index No.: _____

SUMMONS

Plaintiff designates Kings County
as the place for this petition. The basis of
the venue is place of occurrence.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: Brooklyn, New York
July 9, 2024

KOPKE CHRISTIANA & RASTETTER LLP

By:

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Matthew Christiana, Esq.

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VERIFIED COMPLAINT

Plaintiff, by her attorneys, Kopke Christiana & Rastetter LLP, complaining of
Defendants, alleges as follows, upon information and belief and personal knowledge:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims brought under the Constitution and laws of the City and State of New York.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. sections 1983 and 1988 for violations of Plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States, Plaintiff's rights under the Constitution of the State of New York, and the common laws of the State and City of New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. §§ 1983, 1988, and N.Y.C. Admin. Code § 8-805(a)(2).

4. Pursuant to New York State General Municipal Law section 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller on June 8, 2023, and the comptroller designated the claim number as 202300120635.

5. Plaintiff appeared for a hearing pursuant to New York State General Municipal Law § 50-h on September 14, 2023.

6. On May 3, 2024, Plaintiff filed a Petition to file a late Notice of Claim, and on June 3, 2024, the Supreme Court, Kings County, upon stipulation by the parties, deemed Plaintiff's Amended Notice of Claim as timely served as of May 3, 2024, *nunc pro tunc*. See *Patricia Charles as gdn. of L.W. v. City of New York*, Index No. 512534/2024 (Dkt. No. 10).

7. More than thirty days have passed since the filing of Plaintiff's notice of claim.

8. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

9. Venue is properly laid in the Supreme Court of the State of New York, Kings County, because the Plaintiff's claims arose in Kings County.

10. Plaintiff's claims are timely. The statute of limitations on the below claims was tolled by 31 days, beginning on May 3, 2024 when Plaintiff filed the Petition to file a late Notice of Claim, and ending on June 3, 2024, when the Supreme Court, Kings County, upon stipulation by the parties, deemed Plaintiff's Notice of Claim as timely served as of May 3, 2024, *nunc pro tunc*.

11. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

12. As a result of the egregious violations of federal and state law, Plaintiff seeks an award of compensatory and punitive damages as well as attorneys' fees.

13. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

PARTIES

14. Plaintiff Patricia Charles is the guardian of minor child L.W ("Plaintiff"), and brings this action for injuries sustained by, and on behalf of, L.W. on March 10, 2023, when L.W. was, *inter alia*, assaulted, battered, unlawfully seized, falsely arrested, and intentionally or negligently subjected to severe emotional distress by members of the New York Police Department ("NYPD"), including the individually named defendants. At all times relevant to this action, Ms. Charles and L.W. were residents of County of Kings in the City and State of New York.

15. Defendant the City of New York (hereinafter "the City" or "Defendant City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

16. Defendant Melissa L. Stines (Shield No. 7612, Tax ID No. 934059) ("Stines" or "Defendant Stines") was at all times relevant to this Complaint a duly appointed and

acting Officer of the NYPD, 70th Precinct, acting under color of law and in her individual capacity within the scope of her employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City and the State of New York. She is entitled to indemnification under New York General Municipal Law Section 50-k. She is being sued in her individual capacity.

17. Defendant Jonathan Gomez (Shield No. 22992, Tax ID No. 972392) (“Gomez” or “Defendant Gomez”) was at all times relevant to this Complaint a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

18. Defendant John Doe # 1 (“Doe #1” or “Defendant Doe # 1”) was at all times relevant herein a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York, when he, *inter alia*, assisted in transporting L.W. to the precinct on March 10, 2023. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

19. Defendant John Doe # 2 (“Doe #2” or “Defendant Doe # 2”) was at all times relevant herein a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New

York, when he, *inter alia*, assisted in transporting L.W. to the precinct on March 10, 2023. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

20. Defendant John Doe # 3 (“Doe #3” or “Defendant Doe #3”) was at all times relevant herein a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York, when he, *inter alia*, conducted a search of L.W.’s person at the 70th precinct on March 10, 2023. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

21. Defendant John Doe # 4 (“Doe #4” or “Defendant Doe # 4”) was at all times relevant herein a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York, when he, *inter alia*, observed L.W. in need of assistance while in the holding cell at the 70th precinct on March 10, 2023. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

22. Defendant John Doe # 5 (“Doe #5” or “Defendant Doe # 5”) was at all times relevant herein a duly appointed and acting Officer of the NYPD, 70th Precinct, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York, when he, *inter alia*, observed L.W. in need of assistance while in the holding cell at the 70th

precinct on March 10, 2023. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

23. Collectively, Defendants Stines, Gomez, and John Does # 1-5 are referred to as the “Individual Defendants.”

24. The acts and omissions by the Individual Defendants hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

FACTUAL ALLEGATIONS

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. At approximately 9:00 a.m. on March 10, 2023, L.W. entered the Flatbush Ave-Brooklyn College Subway station in Brooklyn to go to school. L.W. recently transferred to a new school and had not yet received her student metro card. As a result, when she approached the subway turnstile, she was unable to proceed onto the subway.

27. L.W. thereafter approached Defendants Stines and Gomez of the 70th Precinct who were present near the subway turnstile and asked to be allowed to board the train to go to school.

28. Defendant Gomez informed L.W. that she could proceed past the turnstile without paying. Relying on Defendant Gomez’s instruction, L.W. proceeded past the turnstile without paying and boarded the subway train.

29. Moments after L.W. boarded the train, Defendants Stines and Gomez entered the train and Defendant Stines yelled at L.W. to get off. However, the train doors closed and L.W. was unable to exit before it pulled away from the station. Defendants Stines, Gomez,

and L.W. rode the subway to the next stop.

30. Despite lacking probable cause or even a reasonable suspicion to believe that L.W. had committed any crimes, once the train arrived at the Newkirk Avenue stop, Defendants Stines and Gomez grabbed L.W., twisted her arm, and handcuffed her.

31. L.W. screamed in pain, started having trouble breathing, and became lightheaded.

32. Defendants Stines and Gomez used such great force in grabbing, twisting, and handcuffing L.W. that they caused L.W. to suffer a left shoulder strain that required her to wear a sling for two weeks.

33. After wrongfully detaining L.W., one of the officers indicated they had done so because they did not like the way she had spoken to them at some point during their initial encounter.

34. Defendants Stines and Gomez then took L.W. outside to a transport vehicle with two other male officers inside, Defendants John Doe #1 and John Doe #2. The four officers pushed L.W. into the vehicle and told her to sit back. L.W., however, could not sit back because her arms were behind her and her shoulder hurt, and informed the officers of as much. Still, Stines, Gomez, Doe #1, and/or Doe # 2 pulled L.W.'s seatbelt back in an intentional and unnecessarily forceful manner, which jerked L.W.'s body backwards and further injured her shoulder.

35. Each of the officers present at that time—including Defendants Stines, Gomez, Doe #1, and Doe #2—observed this use of excessive force against L.W, had a reasonable opportunity to intervene, and deliberately failed or refused to do so.

36. L.W. was then taken to the precinct. Notwithstanding the fact that the Individual Defendants were aware L.W. was a minor, the officers proceeded to place L.W. in a cell in the area of the precinct reserved for adult detainees.

37. At the precinct, Defendant Stines and another officer, John Doe # 3, started touching and searching L.W. without warning or L.W.'s consent, and despite L.W.'s repeated expressions of discomfort. Defendants Stines and John Doe # 3 knew L.W. was a minor child, and further knew that L.W.'s detention was unreasonable and unauthorized, but did not cease touching her.

38. L.W. was thereafter placed in a holding cell.

39. While in the holding cell, L.W. began to menstruate. As a result, L.W. informed the officers that were watching her, John Doe #4 and John Doe #5, that she needed a menstrual pad and also asked to use the bathroom.

40. Defendants Doe #4 and Doe #5 knew that L.W. was a minor child and were aware that L.W. had begun to menstruate and otherwise needed to use the bathroom. Nevertheless, Defendants Doe #4 and Doe #5 refused L.W.'s request, and told her that she had to wait for Defendant Stines to return, which took a considerable amount of time.

41. During that time, L.W. kept asking for Defendants Doe #4 and Doe #5 to get another female officer or call Defendant Stines to take her to the bathroom. Again, the officers refused.

42. So much time had passed, though, that L.W.'s menstrual flow began to soak her clothing. L.W. thereafter began to smell her menstrual flow, which was humiliating. Still, neither Defendants Doe # 4, Doe #5, nor any of the other Individual Defendants, assisted

L.W. in obtaining menstrual pads or allowed her access to the bathroom.

43. At approximately 2:00 p.m., L.W. was released to her guardian.

44. In total, L.W. was unlawfully and unreasonably detained for approximately 5 hours. L.W. remained tightly handcuffed the entire time, subjecting her to a great deal of pain throughout.

45. All of the acts and omissions of the Individual Defendants, as described in the foregoing paragraphs, were intentional and malicious in nature.

CLAIMS FOR RELIEF

First Claim – Excessive Force and Failure to Intervene in Violation of the Fourth and Fourteenth Amendments (42 U.S.C. § 1983)

(Against Defendants Stines, Gomez, Doe #1, and Doe #2)

46. L.W. repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

47. The Fourth Amendment to the United States Constitution prohibits unreasonable seizures by law enforcement officers and requires the degree of force used to be objectively reasonable under the circumstances. Whether an officer's particular use of force is reasonable is judged from the perspective of a reasonable officer at the scene.

48. To determine the perspective of a reasonable officer at the scene, a factfinder must consider the totality of the circumstances, including, but not limited to, the nature of the crime or other circumstances known to the officer, whether the plaintiff posed an immediate threat to the officer or others, the relationship between the need to use force and the amount or degree of force used, whether the officer made efforts to limit the amount of force

used, and the availability of alternative methods that the officer could have used to accomplish his or her legitimate law enforcement objectives.

49. In this case, the above-described uses of force by Defendants Stines, Gomez, Doe #1, and Doe #2 were objectively unreasonable and caused L.W. to experience severe physical injuries, including shoulder injury necessitating medical treatment.

50. Defendants Stines, Gomez, Doe #1, and Doe #2 are liable either because they were direct, integral participants in the uses of force, or because they had a reasonable opportunity to intervene but failed to do so.

51. Each of these acts and omissions was performed under color of state law, intentionally, willfully and with reckless disregard for L.W.'s safety and constitutional rights.

52. The extreme, outrageous, and malicious nature of these acts warrants the imposition of both compensatory and punitive damages.

53. L.W. also seeks statutory attorneys' fees and costs.

Second Claim - Assault and Battery in Violation of New York Law

(Against Defendants Stines, Gomez, Doe #1, Doe #2, Doe #3 and the City)

54. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

55. Defendants Stines, Gomez, Doe #1, Doe #2, and Doe #3 intentionally, willfully and maliciously assaulted and battered L.W., when they, in a hostile and/or offensive manner, unnecessarily twisted L.W.'s arm so forcefully that it necessitated medical treatment, forcefully pulled L.W. backwards in the police vehicle, and otherwise intentionally touched L.W. and subjected her to a search without authority of lawful basis to do so, all done without her consent

and with the intention of causing harmful and/or offensive bodily contact to L.W. and caused such battery.

56. As a result of the above tortious conduct, L.W. was caused to suffer physical, economic, and emotional injuries.

57. As a result of the above tortious conduct, the Defendants Stines, Gomez, Doe #1, Doe #2, and Doe #3 are liable for punitive damages.

Defendant City is liable for the conduct of Defendants Stines, Gomez, Doe #1, Doe #2, and Doe #3 and any damages they caused under the doctrine of *respondeat superior*. **Third Claim - False**

Arrest in Violation of the Fourth and Fourteenth Amendments (42 U.S.C. § 1983)

(Against the Individual Defendants)

58. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

59. The Individual Defendants restrained and arrested Plaintiff without justification or probable cause.

60. The Individual Defendants also searched Plaintiff without probable cause to do so.

61. By virtue of the aforementioned acts and omissions by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

62. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

63. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

Fourth Claim – False Arrest and False Imprisonment in Violation of New York Law

(Against All Defendants)

64. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

65. Plaintiff was arrested, handcuffed, and otherwise detained in the absence of probable cause by the Individual Defendants.

66. At all times mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

67. Plaintiff was conscious of the confinement and did not consent to such confinement.

68. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

69. As a result of the above tortious conduct, the Individual Defendants are liable for punitive damages.

70. The City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

Fifth Claim - Negligence in Performance of Duties**(Against All Defendants)**

71. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

72. The aforesaid actions of the Individual Defendants, or some other employees, constituted negligence in the performance of their duties, for which Defendant City is also vicariously liable under the doctrine of *respondeat superior*.

Sixth Claim - Intentional Infliction of Emotional Distress**(Against Defendants Stines, Gomez, Does #4 and 5, and the City)**

73. L.W. repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

74. By the actions described above, Defendants Stines and Gomez falsely arrested L.W. in the midst of rush-hour traffic on a crowded subway, in view of all to see, and by doing so, engaged in extreme and outrageous conduct, which intentionally caused severe emotional distress to L.W. The acts and conduct of the defendants were the proximate cause of injury and damage to L.W. and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

75. Moreover, by the actions described above, Defendants Doe #4 and Doe #5 engaged in extreme and outrageous conduct by, *inter alia*, forcing or otherwise creating the condition that compelled L.W.—a minor child—to menstruate on herself, in view of all to see, while sitting in a jail cell she was falsely imprisoned in, causing L.W. to experience severe emotional distress. The acts and conduct of Defendants Doe #4 and Doe #5 were intentionally done, and

were the direct and proximate cause of injury and damage to L.W. and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. As a result of the above tortious conduct, L.W. was caused to suffer physical, economic, and emotional injuries.

77. As a result of the above tortious conduct, Defendants Stines, Gomez, Doe #4, and Doe #5 are liable for punitive damages.

78. Defendant City is liable for the conduct of Defendants Stines, Gomez, Doe #4, and Doe #5 and any damages they caused under the doctrine of *respondeat superior*.

Seventh Claim – State Law Constitutional Violations

(Against All Defendants)

79. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

80. Such conduct breached the protections guaranteed to L.W. by the New York State Constitution, including but not limited to Sections 1, 6, and 12 of Article 1.

81. As a direct and proximate result of Defendants' conduct, Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution were violated.

82. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, and the Individual Defendants are liable for all damages arising therefrom, as is the City of New York under the doctrine of *respondeat superior*.

Eighth Claim – Negligent Hiring, Screening, Training, Supervision, and Retention**(Against the City of New York)**

83. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

84. The aforesaid actions of the Individual Defendants resulted from the negligence of Defendant City in the hiring, screening, training, supervision, and retention of the aforementioned employees.

85. Although the City and its agents and employees were aware prior to the events giving rise to the claims alleged herein that the Individual Defendants were unfit and unqualified to function as police officers because, among other things, these officers had engaged in similar malfeasance, acts, and omissions in the past, the City nevertheless retained the Individual Defendants and failed to properly train or supervise these Defendants, resulting in injury and damages to Plaintiff.

Ninth Claim – Due Process Violation under the Fourteenth Amendment (42 U.S.C. § 1983)**(Against Doe #4 and Doe #5)**

86. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

87. At the time L.W. was detained at the precinct, she had not been charged and therefore was a pre-trial detainee.

88. Because pre-trial detainees have not been convicted of a crime, they may not be punished in any manner—neither cruelly and unusually nor otherwise.

89. Nevertheless, while L.W.—a minor child—languished in a cell menstruating upon herself, Defendant Does #4 and #5 stood by, watched, and deliberately refused to assist her. The deliberate refusal of Doe #4 and Doe #5 to act created and exacerbated the condition of punishment imposed on L.W., that is, to be forced to sit in her own menstrual flow in a jail cell as a perverse method of punishment.

90. As a result of the above tortious conduct, L.W. was caused to suffer physical, economic, and emotional injuries.

91. As a result of the above tortious conduct, Defendants Doe #4 and Doe #5 are liable for punitive damages.

**Tenth Claim –Violations of New York City Admin Code § 8-801 et seq.
(Against All Defendants)**

92. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

93. L.W. had a right, secured by the New York City Admin Code § 8-802, to be secure in her person against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force was used in connection with a search or seizure.

94. Notwithstanding these rights, L.W. was subjected to excessive force and unreasonable search and seizure on multiple occasions on March 10, 2023.

95. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

96. As a result of the above unconstitutional conduct, the Individual Defendants are liable for compensatory and punitive damages.

97. Qualified immunity is no defense to this claim pursuant to N.Y.C. Admin. Code § 8-804.

98. The City of New York is liable as the employer of the Individual Defendants under N.Y.C. Admin. Code § 8-803(b)

CONCLUSION

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Individual Defendants and the City of New York:

- A. The convening and empaneling of a jury to consider the merits of the claims herein;
- B. A judgment ordering all Defendants to pay compensatory damages in an amount to be determined at trial;
- C. A judgment ordering punitive damages against the Individual Defendants, in an amount sufficient to deter such conduct in the future;
- D. Attorneys' fees, costs, and interest, pursuant to 42 U.S.C. §§ 1983, 1988, and N.Y.C. Admin. Code § 8-805(a)(2); and
- E. Such other and further relief as this Court deems appropriate and equitable.

Dated: Brooklyn, New York
July 9, 2024

KOPKE CHRISTIANA & RASTETTER LLP

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VERIFICATION

MATTHEW CHRISTIANA, an attorney duly admitted to practice law in the State of New York, hereby affirms the following under penalty of perjury:

That I am the attorney for the plaintiff in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe them to be true.

That the reason this verification is made by your affirmant and not by the plaintiff is that the plaintiff is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts, and documents contained in plaintiff's file maintained by your affirmant's office.

Dated: Brooklyn, New York
July 9, 2024

KOPKE CHRISTIANA & RASTETTER LLP

By: Matthew Christiana

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